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CASE #	CASE NAME	HEARING NAME
CVPS2300864	PEREZ VS GENERAL MOTORS, LLC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Granted.

Attorney fees and costs to be paid by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. On 9/26/19, Plaintiff, Carlos Perez, purchased a 2019 Chevrolet Silverado, which was manufactured or distributed by Defendant General Motors, LLC (GM). The vehicle was sold with bumper-to-bumper and other express warranties. Plaintiff alleges that during the warranty period, the Vehicle developed nonconformities, including transmission, engine and structural issues. Plaintiff asserts that, despite its inability to repair the Vehicle, Defendant refused to repurchase the vehicle in violation of the Song Beverly Consumer Warranties Act (SBA).

Plaintiff filed his operative First Amended Complaint (FAC) on 6/1/23 alleging five causes of action for: (1) Violation of Civil Code § 1793.2(d); (2) Violation of Civil Code § 1793.2(b); (3) Violation of Civ. Code §1793.2(a)(3); (4) Breach of Implied Warranty of Merchantability; and (5) Fraudulent Concealment.

Plaintiff, Carlos Perez, brings this motion for attorneys' fees, costs, and expenses (\$30,052.48) as the prevailing party in this action due to a signed CCP § 998 Offer to Compromise (§ 998 Offer). (Civil Code § 1794(d).) Plaintiff argues the amounts requested including hourly rates were reasonable and necessary along with a multiplier.

Defendant, GM, opposes the motion arguing that this motion is untimely having been filed 304 days after the Notice of Settlement was filed (3/16/25); that the billing is inflated; that this case does not justify a multiplier; that GM offered to resolve this motion for \$20,000 over a year ago; that GM should only be awarded \$5,501.25; and, that counsel should not be compensated for any work related to the fraud claim among other challenged entries.

The Reply asserts that GM does not oppose the hourly rates sought; that the motion is timely as the date of dismissal is 12/19/25; that the billing entries sufficiently set forth time actually necessary to create the pleadings/discovery; and re-asserts prior arguments.

Song Beverly Attorney Fees

Under Civil Code §1794(d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." For purposes of settlement, Defendant, GM, agreed that Plaintiff is the prevailing party. (Dec. Keshishian ¶ 20.) Notice of Settlement was filed on 1/31/25. The only question to be determined by this motion is the amount of the award to Plaintiff.

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure). The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Here, Plaintiff asserts that there were four attorneys who primarily worked on the case and billed 41.4 hours. This assertion is misleading in that far more than four attorneys worked on this case. The billing records indicate that numerous additional attorneys/timekeepers worked on this case at varying hourly rates including Tionna Carvalho, partner (\$570 [2023]; \$650 [2025]); Dhara Chandy (\$375 [2025]); Mark Gibson (\$495 [2023]); Sandy Huynh (\$450 [2025]); Ian McCallister (\$610 [2025]); Tara Mejia (\$395 [2024]); Ebony Randolph (\$375 [2023]); Sanam Vaziri (\$610 [2023]). This means a total of 12 attorneys worked on this case.

The hourly rates sought by Plaintiff for these attorneys vary from \$285 per hour to \$595 per hour, as follows: James Carroll, attorney (20 years' experience) \$595 per hour; Regina Liou, attorney (19 years' experience) \$525 per hour [2024], \$575 per hour [2025]; Maro Orte, attorney (11+ years' experience) \$440 per hour [2023], \$495 [2024], and \$525 [2025]; and Brian Tan (8 years' experience) \$450 [2023-2024]. (Dec. Chandy ¶ 35.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

Based on the Court's own experience, the hourly rate of lead counsel at \$595 an hour or higher is a little high for Riverside County. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) Nonetheless, GM has not challenged any of the hourly rates so, no modification is needed.

Plaintiff also seeks to recover law clerk fees performed by Stefanie Maldonado, graduated in 2024, \$325 [2024], \$345 [2025]; Steve Rangel, \$285 [2023]; Yenok Tantanya, graduated in 2019, \$345 [2025]. (Dec. Chandy ¶ 35.) A court may allow any expenses ordinarily billed to a client which are not included in the overhead component of the attorney's hourly rate, including paralegal fees billed separately at the market rate. (*Guinn v. Dotson* (1994) 23 Cal. App. 4th 262, 268.) In any event, the hourly rates of \$325 to \$345 seem a little high as well. However, once again, GM is not challenging those amounts.

GM specifically challenges Plaintiff's counsel's billing claiming that certain entries are inefficient, unnecessary, padded, and unsupported.

Work related to the fraud claim 6.0 hours (\$3,280): by James Carroll: 3/31/23 – 0.3 hours (\$178.50) meet and confer re fraud claim; 6/1/23 – 1.7 hours (\$1,011.50) draft FAC, review demurrer; 11/1/23 – 2.0 hours (\$1,190) review GM's demurrer and MTS; and 11/22/23 by Brian Tan: 2.0 hours (\$900) prepare/attend hearing re demurrer to the fraud cause of action and punitive damages. This is NOT a reasonable reduction as the demurrer to the fraud claim was overruled.

Drafting templated complaint 2.0 hours (\$1,200): two timekeepers: 2/6/23 and 2/13/23. GM argues that it should only take 0.5 hour so, a reduction of 1.5 hours at Vaziri's \$610 hourly rate is needed. Plaintiff persuasively argues that utilizing templates actually makes generating documents more cost-effective. He adds that documents must be tailored to the facts of this case including repair orders, defects, repair history, vehicle information, applicable legal authority. However, two timekeepers is duplicative so, a 1.0 hour reduction (\$610) is appropriate.

Block-billed templated discovery requests 2.3 hours (\$1,035) on 3/13/23: GM argues it should only have taken 0.5 hours so, a reduction of 1.8 hours (\$810) is required. Plaintiff argues the same as above. 1 hour will be reduced (\$450).

Templated discovery responses 1.0 hour (\$595) on 11/30/23: GM argues these are routine requests that do not vary much so, a reduction of 0.5 hours (\$297.50) is required. Plaintiff argues the same as above. .5 hrs. will be reduced (\$297.50)

Templated meet and confer letter re GM's discovery responses 3.1 hours (\$1,364) on 10/31/23: GM argues this time is padded as nearly identical letter are used in other cases so, a reduction of 2.6 hours (\$1,144) is required. Plaintiff argues the same as above. 2.6 hrs. will be reduced (\$1,144)

Templated manufacturer subpoena 0.8 hours (\$396) on 4/8/24: GM argues it should only take 15 minutes to prepare this so, a 0.75 hours reduction (\$371.25) is needed. Denied.

Templated expert witness designation 1.0 hours \$325) on 12/17/24: same argument as above so, a 0.8 hour (\$260) reduction is needed. Denied.

Templated objection to GM's expert deposition notice 1.0 hour (\$325) on 12/17/24: GM argues the same as above so, a reduction of 0.75 hours (\$243.75) is required. Denied.

Templated trial documents 5.8 hours (\$2,610.50) on 12/23/24, 1/13/25, 1/14/25, 1/16/25: GM argues that because too many attorneys worked on this case, the work is duplicative of work done in 2024 so, a reduction of 4.8 hours (\$2,085.50) is needed. Granted 4.8 hrs. (\$2,085.50)

Anticipated fees for this motion 2.5 hours (\$862.50) on 12/24/25 to prepare reply: GM argues this is the same as all GM's fee motions so, a 0.8 hour (\$300) reduction is needed. This amount is no longer anticipated. No reduction is needed.

Repair chronology 2.0 hours (\$570) on 2/3/23: GM argues this is overhead and is not compensable. Stricken as administrative overhead (\$570)

Preparing for trial calls 0.6 hours (\$366) on 1/16/25 and 1/23/25: GM makes the same argument as above. Stricken as administrative overhead (\$366)

Preparing for/attending conferences 5.4 hours (\$2,905.50) on 4/19/24, 4/24/24, 1/24/25, 1/30/25, 1/31/25: GM argues block billing and non-compensable overhead costs. These amounts appear to be reasonable. It is not clear that these tasks were administrative. Denied.

Duplicative review of GM's § 998 Offer 0.5 hours (\$325) on 1/17/25 and 1/24/25: GM argues that two different time keepers reviewed this but, only one can bill so a 0.3 hour (\$195) reduction is needed. It is not clear that this entry was duplicated. No reduction is needed.

Multiplier

Plaintiff requests a multiplier because this is purportedly a complicated case. The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) The adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (*Ibid.*) The court declines to award an enhancement or positive multiplier. Though Plaintiff's counsel took the case on a contingency basis, the risk of not obtaining fees in this case is virtually nonexistent as attorney fees are mandatory.

Attorney fees granted in a reduced, but reasonable amount of \$19,668.50 - \$5,523.00 + \$3,500.00 = \$17,645.50.

Costs

Plaintiff filed a Memorandum of Costs in the amount of \$1,792.15, which GM does not challenge.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2304017	MIRAMORE, LLC VS TYLER	HEARING ON MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT OF MIRAMORE, LLC

Tentative Ruling: Hearing continued to September 3, 2026 at 8:30 a.m. in Department PS2.

Defendant Brokers to file Brian Sullivan deposition no later than August 7, 2026. A supplemental reply is due by Plaintiffs no later than August 14, 2026.

Steven Traxler ("Traxler") purchased property in Palm Springs on August 6, 2020 (the "Property"). Traxler's interest in the property has been assigned to Plaintiff Miramore, LLC. Traxler did not visit the Property prior to purchasing and relied on his real estate agents Brian Sullivan, Keller Williams Luxury Homes ("Keller Williams") and Michael Hilgenberg ("Hilgenberg") and the sellers Richard John Tyler ("Tyler") and Lisa Trafficante's ("Trafficante") disclosure statements regarding the Property. It is alleged that Tyler and Trafficante stated in the Property's listing that it had new plumbing, which was false. Plaintiff alleges that the seller's real estate agent and broker of record – John White ("White"), Berkshire Hathaway Homeservices California Properties ("Berkshire"), and AC Palm Desert Corporation ("AC Palm"), should have been aware that this assertion was false. Plaintiff contends that Traxler hired Advantage Inspection Professionals, LLC ("Advantage") to inspect the Property, which found no issues with the Property. After Traxler moved into the Property, he discovered that the plumbing did not work properly. The toilets did not flush all of the way or properly fill. After retaining a plumber, it was discovered that the pipes were not new and had been destroyed by a nearby Ficus's root structure. Plaintiff had to remove massive amounts of mature landscaping and destroy the manicured grounds to fix the issue. This cost Plaintiff in excess of \$200,000. Traxler also became aware of frequent helicopter activity overhead because the Property is located in the helicopter flight path of the nearby hospital's emergency helipad. This, too, was not disclosed.